

25STCV08770 25STCV08770

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Case Number: 25STCV08770 Hearing Date: August 14, 2026 Dept: 514

Subia v. FCA US, LLC

25STCV08770

Motion to be Relieved as Counsel for Plaintiff

Defendant's Motion for Sanctions

Tentative Ruling

The motion to be relieved is
granted. Counsel must submit a revised
proposed order.

The motion for sanctions is
denied.

Background

This case arises out of the
purchase of a 2020 Dodge Charger by Jonathon Subia ("Plaintiff").

On March 25, 2025, Plaintiff filed the complaint
in this action against FCA US, LLC ("FCA"), Hoblit Chrysler Dodge Jeep Ram
(collectively "Defendants"), and Does 1 through 10, asserting causes of action for (1) violation of subdivision (d) of Civil Code
section 1793.2,
(2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of
subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied

warranty of merchantability (Civil Code sections 1791.1, 1794, & 1795.5.),
(5) negligent repair, and (6) fraudulent inducement-concealment.

On January 2, 2026, Plaintiff filed a first
amended complaint ("FAC").

On February 2, 2026, Defendants each filed an
answer to the FAC.

There are currently two motions pending
before the Court and set for hearing on August 14, 2026.

First, on June 16, 2026, FCA filed this
motion for sanctions, asserting that Plaintiff provided incomplete initial
disclosures.

No opposition to this motion has been filed.

On August 4, 2026, FCA filed a notice of
non-opposition.

Second, on July 16, 2026, Mani Arabi of
Strategic Legal Practices, APC ("Counsel")
filed a motion to be relieved as attorney of record for Plaintiff.

No opposition to this motion has been filed.

Trial is set for February 16, 2027.

Legal Standard

Motion
to be Relieved

The
court may order that an attorney be changed or substituted at any time before
or after judgment or final determination upon request by either client or
attorney and after notice from one to the other. (Code of Civ. Proc., § 284,
subd. (b).) An attorney is permitted to withdraw where conflicts between
the attorney and client make it unreasonable to continue the

representation. (See Cal. Rules of Prof. Conduct 3-700(C)(1).) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made the mandatory forms approved by the Judicial Council. (Cal. Rules of Court, rule 3.1362.) All forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362(d).) The court may delay effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).)

Motion
for Sanctions

“Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Code Civ. Proc., § 871.26, subd. (b).)

“Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).”

(Code Civ. Proc., § 871.26, subd. (j).)

Discussion

Motion to be Relieved

Counsel has filed the required notice, declaration, and proposed order on the client and all parties in this matter, as required.

Counsel's declaration states that there has been a complete breakdown in the attorney-client relationship and that Plaintiff has stopped responding to communication from Counsel.

Good cause has been shown for the relief requested. All substantive and procedural requirements are satisfied. The motion is granted.

The proposed order submitted on July 16 submitted requires some modifications.

In the box on the right side of the page near the top, the name of the judicial officer must be corrected.

Item 2 must be completed following the hearing.

In Item 3, box b must be checked.

In Item 5, box a must be checked.

Counsel is ORDERED to submit a revised proposed order forthwith.

Motion for Sanctions

FCA seeks sanctions arising from Plaintiff's failure to fully comply with Code of Civil Procedure section 871.26.

By statute, Plaintiff was required to provide documents regarding the following:

"(1) Mileage of the motor vehicle as of the date of the disclosure described in subdivision

(b).

(2) Primary

driver or drivers of the motor vehicle.

(3) If the motor

vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business.

(4) Whether the

plaintiff is still in possession of the motor vehicle.

(5) Address

where the motor vehicle is located.

(6) Whether the

plaintiff is an active or prior member of the Armed Forces.

(7) Whether the

motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number.

(8) Whether the

motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification.

(9) Dates and

mileages for presentations that are not included in the provided repair orders or the location of where the information may be found.

(10) Whether the

plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.

(11) Any need

for an interpreter for purposes of a deposition.”

(Code Civ. Proc., § 871.26, subd. (g).)

FCA has presented evidence that Plaintiff failed to disclose documentation regarding:

“(1) Sales or lease agreement.

(2) Copy of current registration.

(3) Any finance information, account information, including payment history and

estimated payoff amount, and any loan modification agreements.

(4) Any repair orders, including to third-party repair facilities or the location of where information relating to repair orders may be found.

(5) Documents detailing all underlying claimed incidental damages.

(6) Information pertaining to the market value of the motor vehicle that is currently in the consumer's possession.

(7) Any written, pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.”

Further, FCA has presented evidence Plaintiff failed to disclose complete information regarding:

“(1) Mileage of the motor vehicle as of the date of the disclosure;

(3) If the motor vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business.

(6) Whether the plaintiff is an active or prior member of the Armed Forces.

(7) Whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number.

(8) Whether the motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification.

(9) Dates and mileages for presentations that are not included in the provided repair orders or the location of where the information may be found.

(10) Whether the plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.”

No opposition has been filed.

The Court finds Plaintiff failed to provide a complete initial disclosure. Absent good cause, sanctions against counsel are mandatory. (Code Civ. Proc., § 871.26, subd. (j).)

Here, however, the Court has received evidence that there is a breakdown in the attorney-client relationship and that Plaintiff has ceased communicating with his counsel. Under these circumstances, good cause has been shown not to impose sanctions against Plaintiff's counsel.

Accordingly, the motion is denied.

Conclusion

The Court GRANTS the motion of Mani Arabi, Esq. and Strategic Legal Practices, APC to be relieved as counsel for Plaintiff.

The Court ORDERS Counsel to submit a revised proposed order addressing the

issues set forth above forthwith.

The order granting this motion to be relieved is effective upon the filing of a proof of service showing service of the signed order (and not merely the Minute Order) on the client. Until the order is effective, Counsel continues to represent Plaintiff.

The Court DENIES the motion of Defendant FCA US, LLC for sanctions against Plaintiff's counsel.

Plaintiff's counsel is ordered to give notice.